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25-CLJ-07314 KENOVER MARKETING CORP., VS. MEDITERRANEAN DEPOT LLC

LINE 6

KENOVER MARKETING CORP.,
MEDITERRANEAN DEPOT LLC

STEVEN A. BOOSKA

PLAINTIFF: KENOVER MARKETING CORP.'S MOTION TO VACATE DEFAULT JUDGMENT [CCP 473(a) & 187]

TENTATIVE RULING:

APPEAR and explain (1) whether Plaintiff is also seeking to vacate the default entered on March 4, 2026 (in addition to the March 23, 2026 judgment); and (2) whether Plaintiff is seeking leave to file an amended complaint or believes it can file the amendment as of right. If the former, it should lodge with the Court a copy of the proposed Amendment in advance of the hearing.

**UD LAW AND MOTION CALENDAR
MONDAY, SEPTEMBER 14, 2026**

02:00 PM

26-UDL-00587 THE JOHN STEWART COMPANY VS. LINDA CHRISTINA LUCERO MENDIETA

LINE 7

THE JOHN STEWART COMPANY
LINDA CHRISTINA LUCERO MENDIETA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: THE JOHN STEWART COMPANY'S MOTION FOR TERMINATING SANCTIONS AGAINST DEFENDANT
LINDA CHRISTINA LUCERO MENDIETA

TENTATIVE RULING:

Plaintiff The John Stewart Company's Motion for Terminating Sanctions Against Defendant is
GRANTED pursuant to Code Civ. Proc. §§ 2030.290, 2023.010 and 2023.030, as follows:

Plaintiff's Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code section 452
subd. (d).

Termination sanctions are authorized for failure to obey orders compelling discovery responses. (Code Civ. Proc. sections 2030.290, 2023.010 and 2023.030.) Terminating sanctions are to be used sparingly because of their drastic effect. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Sanctions should be tailored to the harm caused by the misuse of the discovery process and should not exceed what is required to protect the party harmed by that misuse, and should be imposed in an incremental approach with terminating sanctions being the last resort. (*Id.* at 191.)

Here, the Court signed a formal order on July 29, 2026, which was filed and served by mail on July 30, 2026, which stated in relevant part:

...Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS's first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting Mercedes Gavin declaration, is hereby deemed admitted by Defendant.

...Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

(RJN Exh.'s 4, 5.)

Defendant's responses were due August 10, 2026, and had not been received by August 20, 2026. (Gavin Decl., ¶¶3-4.) Monetary sanctions also had not been paid as of that date, though they were not due at the time the motion was filed (although would be late now). (*Id.*) The Order compelling discovery responses and ordering payment of monetary sanctions was insufficient to protect Plaintiff from the harm caused by Defendant's misuse of the discovery process because Defendant still has not responded. Additionally, Defendant did not oppose the motion to compel, has not opposed the motion for terminating sanctions, and has not provided any justification for failing to comply with the Court's order. Terminating sanctions are therefore appropriate.

The Motion is accordingly GRANTED, Defendant's Answer is ordered stricken as a terminating sanction, the court directs that default be entered and judgment will be issued in favor of Plaintiff and against Defendant. The hearing on Defendant's Motion for Summary Judgment calendared for September 21, 2026 is vacated as moot.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-UDL-00598 THE JOHN STEWART COMPANY VS. ELIANA MEDINA

LINE 8

THE JOHN STEWART COMPANY
LINDA CHRISTINA LUCERO MENDIETA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: THE JOHN STEWART COMPANY'S MOTION FOR TERMINATING SANCTIONS AGAINST DEFENDANT ELIANA MEDINA

TENTATIVE RULING:

Plaintiff The John Stewart Company's Motion for Terminating Sanctions Against Defendant is GRANTED pursuant to Code Civ. Proc. §§ 2030.290, 2023.010 and 2023.030, as follows:

Plaintiff's Request for Judicial Notice ("RJN") is GRANTED pursuant to Evidence Code section 452 subd. (d).

Termination sanctions are authorized for failure to obey orders compelling discovery responses. (Code Civ. Proc. sections 2030.290, 2023.010 and 2023.030.) Terminating sanctions are to be used sparingly because of their drastic effect. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191.) Sanctions should be tailored to the harm caused by the misuse of the discovery process and should not exceed what is required to protect the party harmed by that misuse, and should be imposed in an incremental approach with terminating sanctions being the last resort. (*Id.* at 191.)

Here, the Court signed a formal order on July 22, 2026, which was filed and served by mail on July 23, 2026, which stated in relevant part:

...Defendant is ordered to provide responses without objections to the interrogatories and inspection demands served upon her by TJS on June 9, 2026, no later than five (5) days after service of written notice of entry of a formal order. In addition, the truth of the matters in TJS's first set of requests for admissions, as set forth in attachment 1 to exhibit 3 of the supporting Mercedes Gavin declaration, is hereby deemed admitted by Defendant.

...Defendant is ordered to pay \$585.00 in monetary sanctions to TJS no later than thirty (30) days after service of written notice of entry of the formal order.

(RJN Exh.'s 4, 5.)

Defendant's responses were due August 3, 2026, and had not been received by August 6, 2026. (Gavin Decl., ¶¶3-4.) Monetary sanctions also had not been paid as of that date, though they were not due under the terms of the Order at the time this motion was filed (although would be late now). (*Id.*) The Order

compelling discovery responses and ordering payment of monetary sanctions was insufficient to protect Plaintiff from the harm caused by Defendant's misuse of the discovery process because Defendant still has not responded. Additionally, Defendant did not oppose the motion to compel, has not opposed the motion for terminating sanctions, and has not provided any justification for failing to comply with the Court's order. Terminating sanctions are therefore appropriate.

The Motion is accordingly GRANTED, Defendant's Answer is ordered stricken as a terminating sanction, the court directs that default be entered and judgment will be issued in favor of Plaintiff and against Defendant. The hearing on Defendant's Motion for Summary Judgment calendared for September 21, 2026 is vacated as moot.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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